

Raj Kumar Ojha v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 19 May 2025 · APPLICATION U/S 528 BNSS No. 13290 of 2025 · **Notice issued; criminal proceedings stayed pending listing**

HEADNOTE

Section 528 BNSS application to quash IPC ss. 353, 504 and 506 proceedings, alleged to have been lodged instead of deciding Para 6.5 Supply Code objections, listed for consideration with interim stay of the criminal case.

FACTUAL SUMMARY

Raj Kumar Ojha sought quashing of Criminal Case No. 80 of 2024 (Crime No. 230 of 2022, ss. 353, 504, 506 IPC, P.S. George Town, Prayagraj) and the 17 January 2024 summoning order. A Division Bench in Writ-C No. 11135 of 2022 had directed the first informant to decide Para 6.5 Supply Code objections within eight weeks; an FIR of 22 June 2022 was lodged instead. Counsel said the FIR was false, the informant's contempt reply omitted the incident, and there was no pre-summoning evidence.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay of criminal proceedings

HOLDING

Prima facie the s. 528 BNSS application to quash Criminal Case No. 80 of 2024 requires consideration. Notice issued to opposite party no. 2; further proceedings of that case stayed until further orders; listed after eight weeks. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction

Section 528 BNSS application to quash IPC ss. 353, 504 and 506 proceedings, alleged to have been lodged instead of deciding Para 6.5 Supply Code objections, listed for consideration with interim stay of the criminal case. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE S. 528 BNSS QUASH AND OF THE PARA 6.5 SUPPLY CODE OBJECTIONS

Only notice, listing and an interim stay; no finding on the FIR or on clause 6.5. ¶ 1